

of the order on one occasion) (*l*), in the premises. The order therefore will not affect the husband's curtesy, if any (*m*). The Court will not direct the *form* of conveyance (*n*), but it looks to the propriety of the order with reference to each particular estate, and it will not give the *feme covert* a roving power of disposition over *any* property which she may happen to have (*o*). In most cases the Court has made the order to enable the wife to deal with her own property for her maintenance, but in other cases the court has enabled the *feme covert* to execute a trust (*p*): and it would seem therefore that where there is an incapacity of the husband to join in a deed, the **feme covert* (who [*36] has no want of discretion) can execute the trust by the aid of the Court.

6. **Bare Trustee.** — By 37 & 38 Vict. c. 78. s. 6, it is enacted that when any *freehold* or *copyhold* hereditaments shall be vested in a married woman as a *bare trustee*, she may convey or surrender the same as if she were a *feme sole*.¹

[7. **Married Women's Property Act.** — Now by Sect. 18 of the Married Women's Property Act, 1852 (*a*), a married woman who is an executrix or administratrix alone, or jointly with any other person, may transfer or join in transferring any annuity or bank deposit, or any part of the public stocks or funds, or of the stocks or funds of any bank, or any share stock debenture, debenture stock, or other benefit right claim

(*l*) *Re Kelsey*, 16 C. B. 197.

[(*m*) By sect. 91 of the Fines and Recoveries Act, all deeds executed by the wife in pursuance of the order shall (but without prejudice to the rights of the husband as then existing independently of the act) be as good and valid as they would have been if the husband had concurred. The words in parenthesis have occasioned some difficulty, but it is conceived that the only rights of the husband reserved by them are such rights as he is entitled to by virtue of an independent interest, and that the wife's deed passes all such estate and inter-

est as she is by sect. 77 empowered to dispose of with the husband's consent. See *Goodechild v. Dougal*, 3 Ch. D. 650; and see also *Re Jakeman's Trusts*, 23 Ch. D. 344; and see *Fowke v. Draycott*, 33 W. R. 701; 29 Ch. D. 996, where it was held that the wife's disposition did not deprive the husband of the common-law rights which he had acquired by the coverture.]

(*n*) *Re Turner*, 3 C. B. 166.

(*o*) *Re Cloud*, 15 C. B. N. S. 833.

(*p*) *Re Mirfin*, 4 M. & G. 635; *Re Haigh*, 2 C. B. N. S. 198; [*Re Caine* 10 Q. B. D. 284.]

[(*a*) 45 & 46 Vict. c. 75.]

¹ See *Re Docwra*, 29 Ch. D. 693.